

95678. With those changes, the court also approves the proposed form of notice attached as Exhibit C to the February 20, 2026 declaration of counsel Friedman.

For the purposes of the settlement, the court hereby certifies the class as “all persons within the United States who purchased the following Thinkware Products between January 25, 2019 and August 31, 2024: X700 dash cams, F200PRO dash cams, DC-M2-FG-IR dash cams, DC-M2-FG dash cams, and F70PRO dash cams,” excluding members of the court, class counsel, Thinkware and its employees and agents.

The court preliminarily appoints and designates Jessica Ratzak as the class representative. The court preliminarily appoints and designates Adrian R. Bacon and Todd M. Friedman of the Law Offices of Todd M. Friedman, P.C. as class counsel. The court appoints and designates Eisner Advisory Group, LLC as the settlement administrator.

The court also incorporates by reference all findings and orders set forth in the Proposed Order submitted in connection with the instant motion.

The final approval hearing is scheduled for **January 12, 2027 at 8:30 a.m. in Department 32**. The motion for final approval shall be filed and served in accordance with Code of Civil Procedure section 1005(b).

Case Management Conference

In light of the court’s above ruling granting preliminary approval, no appearance is required and no further case management conference is scheduled at this time.

7. S-CV-0050702 SVLA LLC v. Mark Tanner Construction Inc.

Defendant Jason Wooley dba Lot C Architecture’s Motion for Summary Judgment / Adjudication and Defendant Mark Tanner Construction, Inc.’s Motion for Summary Adjudication is **continued to August 25, 2026, at 8:30 a.m. in Department 32**.

8. S-CV-0051163 France, Jason v. Powers, Bridget

The motion for attorneys’ fees is continued to **August 20, 2026 at 8:30 a.m. in Department 3** to be heard by the **Honorable Michael W. Jones**. No further briefing is permitted.

9. S-CV-0055053 Jacobson, Annika v. Warren T Eich Middle School

Roseville City School District’s Demurrer to First Amended Complaint

Defendant Roseville City School District (district) demurs to the second cause of action in the first amended complaint, which is the only cause of action alleged against the district, on the basis that plaintiffs fail to allege the essential elements of a claim for

dangerous condition on public property pursuant to Code of Civil Procedure section 835. Plaintiffs oppose the demurrer.

Evidentiary Rulings

The district requests judicial notice for the Sierra Gardens School Field Area Agreement with GT Soccer; the initial complaint filed by plaintiffs on April 15, 2024; the tentative ruling on the district's demurrer to plaintiffs' initial complaint, issued on September 22, 2025; and amended civil minutes regarding district's demurrer to plaintiffs' initial complaint, issued on October 14, 2025. The district's request is denied as to the agreement with GT Soccer and otherwise granted. (*See The Travelers Indemnity Co. of Connecticut v. Navigators Specialty Ins. Co.* (2021) 70 Cal.App.5th 341, 354.)

Ruling on the Motion

The first amended complaint alleges that on or about October 14, 2023, in the grass field adjacent to Warrant T. Eich Middle School, plaintiff Annika Jacobson, a minor, was playing with her twin sister plaintiff, Hanna Jacobson, on the recreational grass field adjacent to Warren T. Eich Middle School. (First Amended Complaint ¶¶ 16, 22.) When Hanna leaned against the side of the unsecured soccer goal post, it toppled over onto Annika, causing bodily injuries. (First Amended Complaint ¶ 22.) Annika suffered loss of consciousness, a fractured nose, dental injuries, gum and mouth injuries, a laceration requiring stitches, brain injury, and scarring. (*Id.*)

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10 (e), (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Second Cause of Action: Dangerous Condition on Public Property

The second cause of action alleges that the district was negligent in the use, ownership, operation, management, security, and maintenance of the property where the goal post was located. Government Code section 835 establishes that “a public entity is liable for injury caused by a dangerous condition of its property” where a plaintiff establishes several conditions. To prevail, a plaintiff must show that (1) the property was in a dangerous condition at the time of the injury, (2) the dangerous condition caused the injury (3) the condition created a reasonably foreseeable risk of the kind of injury incurred, and (4a) a negligent or wrongful act or omission of an employee of the public entity within the scope of his or her employment created the condition or (4b) the public

entity had actual or constructive notice of the dangerous condition in time to have taken measures to protect against it. (Gov. Code § 835; *Sun v. City of Oakland* (2008) 166 Cal.App.4th 1177, 1183.)

A dangerous condition is “a condition of property that creates a substantial (as distinguished from a minor, trivial, or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code § 830, subd. (a).) “The existence of a dangerous condition is usually a question of fact but may be resolved as a question of law if reasonable minds can come to but one conclusion.” (*Chowdhury v. City of Los Angeles v. City of Los Angeles* (1995) 38 Cal.App.4th 1187, 1194.)

The district contends that the plaintiffs failed to allege specific facts to establish: (1) the district owned or controlled the premises where the alleged incident took place; (2) a dangerous physical condition on the district’s property; (3) an employee of the district negligently created a dangerous condition on the property; (4) actual or constructive knowledge pursuant to Government Code section 835, subdivision (b), and section 835.2, subdivisions (a) and (b); and (5) the district cannot be liable under the Civic Center Act, which apportions liability between school districts and the parties to which they lease use of facilities.

The district argues plaintiffs failed to plead ownership or control. Plaintiffs allege the district and other defendants “owned, rented, leased, subleased, licensed, operated, managed, or otherwise retained control over access to and safety conditions of the subject premises” and that the district and other defendants “owned, operated, maintained, secured, and controlled the subject goal post located on the subject premises. (First Amended Complaint ¶¶ 17, 50.) The court finds this allegation sufficiently alleges ownership and control of the subject premises.

As to whether a dangerous physical condition existed on the district’s property, Government Code section 830(a) defines dangerous condition as a condition of property creating a substantial risk of injury when the property or adjacent property is used with due care in a reasonably foreseeable manner. Plaintiffs allege that the district permitted, approved, ratified, or knowingly allowed the subject goal post to remain indefinitely at the subject premises in a fixed position, where it functioned as a de facto permanent fixture integrated into the physical and recreational environment of the subject premises. (First Amended Complaint ¶ 51.) Plaintiffs allege that the district failed to secure, anchor, remove, warn of danger, or otherwise stabilize the goal, despite the dangerousness of the subject goal post and foreseeability of injury to the public. (*Id.*)

“[P]ublic property has also been considered to be in a dangerous condition ‘because of the design or location of the improvement, the interrelationship of its structural or natural features, or the presence of latent hazards associated with its normal use.’” (*Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139, 148-49.) The court finds the allegations sufficiently allege a dangerous physical condition.

The district argues plaintiffs do not identify a specific district employee who placed the goal post. However, the first amended complaint pleads both statutory paths under Government Code section 835: (1) creation or contribution to the dangerous condition; and (2) actual or constructive notice.

The first amended complaint alleges that the district “allowed an unsecured, unmounted, and inadequately maintained subject goal post to remain on the subject premises in such a manner that the premises as a whole were rendered dangerous,” and the district, through its employees, permittees, “lessees acting with its permission and under its authority or control, created, contributed to, failed [to] remedy, or failed to warn the dangerous condition by ... failing to remove or secure the subject goal post.” (First Amended Complaint ¶¶ 54-55.)

The first amended complaint also alleges actual or constructive notice. Plaintiffs allege upon information and belief that the district “had actual or constructive notice of the dangerous condition for a sufficient period of time prior to the incident to have taken measures to protect against it, but failed to do so” and that the dangerous condition was “open and obvious to anyone inspecting or maintaining the subject premises and existed sufficient period of time such that, in the exercise of reasonable care” the district would have “discovered and corrected it.” (First Amended Complaint ¶ 56.)

The foregoing allegations sufficiently satisfy the requirements of Government Code § 835(a) and (b) at the pleading stage.

The district argues that it is not liable under the Civic Center Act. Education Code § 38134 under the Civic Center Act creates separate responsibility for the district and outside organization using the district property. Education Code section 38134(h)(1) provides that a school district authorizing use of school facilities or grounds is liable for injury resulting from the school district’s negligence in ownership and maintenance of the facilities or grounds. The user entity is liable for injury resulting from that entity’s negligence during the use of the facilities or grounds.

The district cites *Grossman*, where a plaintiff sustained injuries from a fall from an inflatable slide at a school carnival. However, *Grossman* is distinguishable. *Grossman v. Santa Monica-Malibu Unified School District* was a summary judgment case, not a demurrer. (*Grossman* (2019) 33 Cal.App.5th 458.) In addition, a booster club set up the slide for a temporary carnival. Here, plaintiffs allege that the district permitted, approved, ratified, or knowingly allowed the subject goal post to remain indefinitely at the subject premises in a fixed position, where it functioned as a de facto permanent fixture integrated into the physical and recreational environment of the subject premises. (First Amended Complaint ¶ 51.) Plaintiffs allege the district retained control over access and safety conditions, controlled the goal post, allowed it to remain on the premises, failed to secure or warn, and had actual or constructive notice. (First Amended Complaint ¶¶ 17, 54-55.) *Grossman* itself recognizes that Education Code § 38134 allocates separate risks between the district and the outside user and that the school district is liable for

negligence in ownership and maintenance while the user entity is liable for negligence during use.

Based on the foregoing, the demurrer is overruled in its entirety. Defendant Roseville City School District shall file an answer to plaintiffs' first amended complaint on or before **August 28, 2026**.

Roseville City School District's Motion for Sanctions

Defendant Roseville City School District moves for sanctions, stating plaintiffs had no evidentiary or factual basis for filing the first amended complaint against the district. (Mot. for Sanctions at 5.) Plaintiffs oppose the motion.

As defendant's demurrer has been overruled in its entirety, the motion for sanctions is denied.

10. S-CV-0055662 Fallahi-Marzooni, Keyan v. Peers, Jessica

Defendant's Motion for Judgment on the Pleadings

Defendant Jessica Peers move for judgment on the pleadings as to each cause of action alleged in plaintiff Keyan Fallahi-Marzooni's first amended complaint. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) The grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Ibid.*)

Previously, the court continued the hearing to permit the parties to complete the meet and confer process. Declarations filed by the parties establish that meet and confer did occur after the continuance was ordered but did not resolve any issues identified by the motion.

As a preliminary matter plaintiff argues the motion is barred as the court overruled a prior demurrer to the first amended complaint brought by defendant. The court notes defendant's demurrer was overruled on procedural grounds based on the omission of a memorandum of points and authorities. A court may grant a motion for judgment on the pleadings if the basis of the motion is not a legal argument that was previously overruled on demurrer. (*Faber v. Bay View Terrace Homeowners Assn.* (2006) 141 Cal.App.4th 1007, 1013.) Here, the court did not previously consider or rule on the substantive legal arguments presented by the motion for judgment on the pleadings. The court finds defendant's motion is properly before the court.